

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

16. CLARA STEWART V. FRANCISCO MARIN

SFL20190229

This matter is pending receipt and review of the 3111 report. The parties last appeared before the court on April 23, 2026, at which time the court stayed its tentative ruling. A review hearing was set for the present date.

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking child support, attorney's fees, sanctions and therapy orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 4, 2026.

Petitioner filed and served her Responsive Declaration to Request for Order and her Memorandum of Points and Authorities on March 19th. She filed and served an Amended Memorandum of Points and Authorities on March 20th and a Supplemental Declaration on March 24th.

The court received the Family Code section 3111 report on March 26, 2026.

Respondent submitted a Reply Declaration to the 3111 Report on April 10, 2026. It was served on Petitioner and Minor's Counsel the same day. Respondent requests the exchange location for non-school exchanges remain at Town Center, in El Dorado Hills as the parties have been exercising. Respondent also requests that short overnight trips on weekends required the parties to provide each other notice and provide the location of where the overnights will be taking place. Respondent also seeks clarification regarding the recommendations as to casinos and racetracks.

Petitioner filed a Reply Declaration on April 17, 2026. It was served on Respondent and Minor's Counsel the same day. Petitioner seeks further clarifying orders as well. Petitioner requests that the terms "notice" and "provide information" means that notice or the provision of information to be in writing. Petitioner requests the minor have access to a smart watch or smart device for communication and safety purposes. Petitioner proposes changes to provisions 6.b. and 6.d.. Petitioner requests Kristin Kaminski or other mutually agreed licensed provider for family therapy.

Respondent filed a Declaration as well as an updated Income and Expense Declaration on May 22, 2026. It was served the same day. Respondent is requesting the court adopt its prior tentative ruling as well as adopting the 2-2-5-5 schedule as Minor's Counsel recommended. Further, Respondent is withdrawing his CCP 128.5 sanctions request. Respondent requests that the focus of counseling be on reunification.

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Respondent is requesting Family Code section 7065 attorney's fees as well as guideline child support.

Neither Petitioner nor Minor's Counsel have filed additional Supplemental Declarations.

The court has read and considered the filings as outlined above. The court adopts the recommendations as set forth in the March 26th 3111 report with the following modifications. All notice and provision of information shall be in writing utilizing the co-parenting application Talking Parents. The parties are to continue to use the current exchange location (El Dorado Hills, Town Center) for non-school exchanges. For any overnights away from the parties' primary residence home, the parties are to provide the other parent written notice and itinerary including the address where the minor will be staying via the co-parenting application. As to 6.b. - for overnights not exceeding three nights, notice is to be provided as soon as practicable. For overnights exceeding three nights, notice shall be at least seven days prior to departure. As to 6.d.- written notice for out of state travel is required not later than seven days prior to departure, absent an emergency or unforeseen circumstances which would make further advance notice impossible. The notice shall include travel dates, destination, the address where the minor will be staying overnight, and a reliable method for contact.

The court is not ordering the minor to have a smart watch or smart device for communication. The parties are to ensure contact with the other parent as set forth in the recommendations.

As to the provisions of 8.b., the minor is not to be on casino floors or other places where children are prohibited in a casino or racetrack.

Kristin Kaminski shall be the family therapist if available. If Ms. Kaminski is not available, Minor's Counsel shall select the family therapist.

The court is adopting the 2-2-5-5 schedule to begin now. The court finds that is in the minor's best interest rather than waiting for the middle of the school year as set forth in the 3111 Report. Petitioner shall have parenting time Monday and Tuesday. Respondent shall have Wednesday and Thursday. The parties will rotate Friday, Saturday, and Sunday. Exchanges are to occur at school.

Respondent's request for CCP 128.5 sanctions is withdrawn.

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As to the request for Family Code section 7065 attorney's fees and child support, the court finds the most recent Income and Expense Declaration from Petitioner to be out of date, as it was filed January 9, 2026. The court orders parties to appear and for Petitioner to bring an update Income and Expense Declaration.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: AS TO THE REQUEST FOR FAMILY CODE SECTION 7065 ATTORNEY'S FEES AND CHILD SUPPORT, THE COURT FINDS THE MOST RECENT INCOME AND EXPENSE DECLARATION FROM PETITIONER TO BE OUT OF DATE, AS IT WAS FILED JANUARY 9, 2026. THE COURT ORDERS PARTIES TO APPEAR AND FOR PETITIONER TO BRING AN UPDATE INCOME AND EXPENSE DECLARATION.

THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MARCH 26TH 3111 REPORT WITH THE FOLLOWING MODIFICATIONS. ALL NOTICE AND PROVISION OF INFORMATION SHALL BE IN WRITING UTILIZING THE CO-PARENTING APPLICATION TALKING PARENTS. THE PARTIES ARE TO CONTINUE TO USE THE CURRENT EXCHANGE LOCATION (EL DORADO HILLS, TOWN CENTER) FOR NON-SCHOOL EXCHANGES. FOR ANY OVERNIGHTS AWAY FROM THE PARTIES' PRIMARY RESIDENCE HOME, THE PARTIES ARE TO PROVIDE THE OTHER PARENT WRITTEN NOTICE AND ITINERARY INCLUDING THE ADDRESS WHERE THE MINOR WILL BE STAYING VIA THE CO-PARENTING APPLICATION. AS TO 6.B. - FOR OVERNIGHTS NOT EXCEEDING THREE NIGHTS, NOTICE IS TO BE PROVIDED AS SOON AS PRACTICABLE. FOR OVERNIGHTS EXCEEDING THREE NIGHTS, NOTICE SHALL BE AT LEAST SEVEN DAYS PRIOR TO DEPARTURE. AS TO 6.D.- WRITTEN NOTICE FOR OUT OF STATE TRAVEL IS REQUIRED NOT LATER THAN SEVEN DAYS PRIOR TO DEPARTURE, ABSENT AN EMERGENCY OR UNFORESEEN CIRCUMSTANCES WHICH WOULD MAKE FURTHER ADVANCE NOTICE IMPOSSIBLE. THE NOTICE SHALL INCLUDE TRAVEL DATES, DESTINATION, THE ADDRESS WHERE THE MINOR WILL BE STAYING OVERNIGHT, AND A RELIABLE METHOD FOR CONTACT.

THE COURT IS NOT ORDERING THE MINOR TO HAVE A SMART WATCH OR SMART DEVICE FOR COMMUNICATION. THE PARTIES ARE TO ENSURE CONTACT WITH THE OTHER PARENT AS SET FORTH IN THE RECOMMENDATIONS.

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AS TO THE PROVISIONS OF 8.B., THE MINOR IS NOT TO BE ON CASINO FLOORS OR OTHER PLACES WHERE CHILDREN ARE PROHIBITED IN A CASINO OR RACETRACK.

KRISTIN KAMINSKI SHALL BE THE FAMILY THERAPIST IF AVAILABLE. IF MS. KAMINSKI IS NOT AVAILABLE, MINOR'S COUNSEL SHALL SELECT THE FAMILY THERAPIST.

THE COURT IS ADOPTING THE 2-2-5-5 SCHEDULE TO BEGIN NOW. THE COURT FINDS THAT IS IN THE MINOR'S BEST INTEREST RATHER THAN WAITING FOR THE MIDDLE OF THE SCHOOL YEAR AS SET FORTH IN THE 3111 REPORT. PETITIONER SHALL HAVE PARENTING TIME MONDAY AND TUESDAY. RESPONDENT SHALL HAVE WEDNESDAY AND THURSDAY. THE PARTIES WILL ROTATE FRIDAY, SATURDAY, AND SUNDAY. EXCHANGES ARE TO OCCUR AT SCHOOL.

RESPONDENT'S REQUEST FOR CCP 128.5 SANCTIONS IS WITHDRAWN.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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17. CHALLYN WILLIAMS V. MARK WILLIAMS

PFL20210389

On January 7, 2026, Petitioner filed a Request for Order (RFO) seeking final decision making authority on the minor's school as well as medical decisions regarding vaccinations. This followed a denied ex parte application making the same requests. Respondent was personally served on January 8, 2026.

Respondent filed a Responsive Declaration on February 26, 2026. It was mail served on Petitioner on the same day. Respondent is opposed to the request.

Petitioner filed another ex parte application on March 10th. The court authorized Petitioner to make legal decisions regarding the minor's need to extract a tooth only. On March 11, 2026, Petitioner filed an RFO, requesting legal decision making regarding treatment for the minor. Proof of Service shows it was served on March 13th.

On March 12, 2026, the court adopted its tentative ruling referring the parties to CCRC with an appointment on April 6, 2026 and a review hearing on June 4, 2026.

Petitioner again filed an RFO on March 20th in conjunction with an ex parte request. Once again this request was denied. The RFO was not set for a hearing.

Petitioner filed two Declarations on March 20th. They were served on March 22nd.

Both parties attended Child Custody Recommending Counseling (CCRC) on April 6, 2026. The parties were able to reach agreements. A report with the parties' agreements was filed with the court on April 8, 2026, and mail served on the parties the same day.

The court has read and considered the filings as outlined above. The court adopts the parties' agreements as set forth in the April 8th CCRC report. Additionally, the court is ordering the parties to participate in co-parenting counseling. Parties may return to Colleen Underwood, who was their prior counselor or, if she is unavailable, they may select a new counselor. Petitioner shall provide Respondent with the names of three potential co-parenting counselors by no later than June 18th. Respondent shall select one of the three by no later than June 25th. Petitioner shall ensure that the proposed counselors are available and taking on new clients. Parties shall participate in co-parenting counseling at a frequency and duration as recommended by the counselor.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately